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Case Number: 22SMCV02646 Hearing Date: July 9, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

HUME STREET MANAGEMENT
CONSULTANTS LIMITED,

Plaintiff,

v.

SHEIKH HAMAD bin KHALIFA bin
HAMAD bin ABDULLAH bin JASSIM bin
MOHAMMED AL-THANI , et al.,

Defendants.

Case No.:

22SMCV02646

Hearing Date: 7/9/26

Trial Date:

None set

[TENTATIVE] RULING RE:

Motions to Quash Service of Summons

Background

On April

18, 2023, Plaintiff Hume Street Management Consultants Limited ("Plaintiff") filed the operative First Amended Complaint ("FAC") against several entities and individual defendants including Specially Appearing Defendants Sheikh Hamad bin Khalifa bin Hamad bin Abdullah bin Jassim bin Mohammed Al-Thani ("HBK"), Sheikha Lulwah bint Hamad bin Khalifa Al-Thani ("Lulwah"), and Dilmon Services (U.K.) Limited ("Dilmon"), asserting causes of action for: (1) Breach of Contract; (2) Account Stated; (3) Quantum Meruit; (4) Promissory Estoppel; and (5) Unjust Enrichment.

On May 4,

2026, HBK, Lulwah, and Dilmon (collectively, "HBK Defendants") filed the instant Motions to Quash Service of Summons. On June 25, 2026, Plaintiff filed an Opposition to each motion. On July 1, 2026, HBK Defendants filed their respective Reply briefs.

Evidentiary Objections

HBK

Defendants object to portions of the declarations of Patrick McMillen, Liam Cunningham, and Phillip Howard. Objection no. 1 is SUSTAINED as argumentative and improper legal conclusion. However, Objection nos. 2-19 are OVERRULED. Objections based on lack of foundation, hearsay, and lack of personal knowledge should be overruled unless there is a reason to believe that a witness, including an expert witness, would not be able to lay a foundation and authenticate these facts at trial. (See *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947-948.) For the same reason, Plaintiff's objections to portions of the declaration of Ziyad Clot are OVERRULED.

Legal Standard

On a motion to quash

service of the summons and complaint, the moving party must first present some

admissible evidence, such as declarations or affidavits, to place the issue of minimum contacts before the Court. (School Dist. of Oskaloosa County v. Superior Court, (1997) 58 Cal.App.4th 1126, 1131.) "When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct., (2007) 148 Cal.App.4th 556, 568; see also Elkman v. National States Ins. Co., (2009) 173 Cal.App.4th 1305, 1312-13 ["Where a nonresident defendant challenges jurisdiction by way of a motion to quash, the plaintiff bears the burden of establishing by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction."].) Evidence of the facts giving rise to personal jurisdiction or their absence may be in the form of declarations. (Arensen v. Raymond Lee Organization, Inc., (1973) 31 Cal.App.3d 991, 995.)

California's long-arm statute permits a court to exercise personal jurisdiction on any basis consistent with state or federal constitutional principles. (Code Civ. Proc. ["CCP"] §410.10.)

"Personal jurisdiction may be either general or specific. A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are 'substantial . . . continuous and systematic.'" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445-446 (citations omitted).)

"If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits, and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.'" (Id. at pg. 446, citations omitted.) The purposeful availment test is only satisfied if the defendant purposefully and voluntarily directs its activities toward California so that the defendant should expect, because of the benefits it receives, to be subject to jurisdiction here based on its contacts with California. (Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1062.) Purposeful availment occurs when a nonresident defendant purposefully directs its activities at California residents,

deliberately engages in significant activities here, or creates “continuing obligations” between itself and California residents. (Id. at 1063.)

Analysis

Here,

HBK Defendants assert that there is no basis for exercising personal jurisdiction over them as they have no minimum contacts with California. Plaintiff opposes. For the reasons set forth below the Court finds that Plaintiff has not met its burden demonstrating that jurisdiction over Dilmon is proper but has met its burden of demonstrating that jurisdiction over HBK and Lulwah is proper.

General Jurisdiction

General

jurisdiction is an “exacting standard” which requires that the defendant's contacts with the forum state be both “substantial and continuous” as to “make it consistent with traditional notions of fair play and substantial justice to subject the defendant to the jurisdiction of the forum, even where the cause of action is unrelated to the contacts.” (Calvert v. Huckins, (1995) 875 F. Supp. 674, 677.)

First,

Dilmon asserts and submits evidence showing that it is not subject to general jurisdiction. Dilmon is an English limited company with its principal place of business located in London, England. (Dilmon Mot., Clot Decl., ¶¶2-3.) It has no employees or board members located in California; does not receive mail outside of its London address; bank accounts are only in the United Kingdom; only pays taxes in the United Kingdom; and its parent company has an office only in Doha, Qatar but is a separate entity from Dilmon. (Id., ¶¶3-4.) Furthermore, Dilmon does not own any real estate in California, does not maintain any offices in California, does not provide services to California nor its residents, and has not entered into any contracts with California residents. (Id., ¶7.) Plaintiff's argument that Dilmon is an agent of Beverly Hills Acquisition, LLC for purposes of general jurisdiction is unavailing. (See BBA Aviation PLC v. Superior Court (2010) 190 Cal.App.4th 421, 429 [“When the nonresident defendant is a parent corporation of a subsidiary which does business in California, the minimum contacts may be direct between the parent

and the state, or imputed to the parent via its subsidiary. General jurisdiction over a local subsidiary extends to the foreign parent under an alter ego theory, general principles of agency, or under the representative services doctrine, a narrow species of agency.”.) There are no allegations in the FAC indicating that Dilmon is an agent or owner of Beverly Hills Acquisition, LLC (FAC/Compl., ¶23; Reply at 3:5-22) nor does Plaintiff produce any evidence via judicial notice showing that Dilmon has any affiliation with or equitable ownership interest in Beverly Hills Acquisition, LLC.

Next, HBK

and Lulwah aver that they are domiciled in Doha, Qatar and do not own any real estate in California. (HBK Mot., Clot Decl., ¶¶4-5; Lulwah Mot., Clot Decl., ¶¶3-4.) Moreover, HBK asserts that he only has indirect ownership of Maybourne Beverly Hills (“MBH”) through his ownership in Beverly Hills Acquisition, LLC. (HBK Mot. at 7:5-17.) By contrast, Lulwah states that she has no ownership in MBH. (Lulwah Mot. at 6:6-9.) To the extent that Plaintiff argues that through Lulwah’s oversight of the MBH project on behalf of HBK, both HBK and Lulwah are subject to general jurisdiction, the Court disagrees. Plaintiff does not indicate that HBK and Lulwah traveled to California to enter into the contract, to oversee the MBH project in person, and/or to have meetings in California related to the MBH project. In fact, Plaintiff attests that Lulwah participated in a meeting with Patrick McKillen on HBK’s yacht in Doha, Qatar. (McMillen Decls., ¶11.)

Accordingly,

the Court finds no evidence of activities in the forum pervasive enough to support the exercise of general jurisdiction.

Specific Jurisdiction

Specific jurisdiction involves

a three-part test in California. “A court may exercise specific jurisdiction over a nonresident defendant only if: (1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant’s contacts with the forum” ’ [citation]; and (3) ‘the assertion of personal jurisdiction would comport with “fair play and substantial justice” ’ ’ [Citations].” (Pavlovich v. Superior Ct. (2002) 29 Cal. 4th 262, 269.) The “ ‘minimum contacts’ analysis looks to the defendant’s contacts with the forum [s]tate itself, not the defendant’s contacts with persons who reside there.”

[Citations.] “ ‘[T]he plaintiff cannot be the only link between the defendant and the forum. Rather, it is the defendant’s conduct that must form the necessary connection with the forum State that is the basis for its jurisdiction over him.’

” [Citations.]; “[T]o find specific jurisdiction, a court must look to the defendant’s ‘own’ suit-related contacts with the forum to see if they create a ‘substantial connection with the forum State,’ not just ‘with persons who reside there.’ ” (Swenberg v. Dmarcian, Inc., (2021) 68 Cal.App.5th 280, 295 [emphasis in original].)

1. Purposeful Availment

[P]urposeful availment occurs where a nonresident defendant “purposefully direct[s]” [its] activities at residents of the forum, ‘create[s] a “substantial connection” with the forum’ [citation], ‘ “deliberately” has engaged in significant activities within’ the forum [citation], or ‘has created “continuing obligations” between [itself] and residents of the forum’ [citation].” (Swenberg v. Dmarcian, Inc., (2021) 68 Cal.App.5th 280, 294-295.) “

‘Purposeful availment’ requires that the defendant ‘have performed some type of affirmative conduct which allows or promotes the transaction of business within the forum state.’ ” [Citations.] In other words, “[t]he purposeful availment inquiry ... focuses on the defendant’s intentionality. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on’ his contacts with the forum.” (LG Chem, Ltd. v. Superior Court of San Diego County (2022) 80 Cal.App.5th 348, 362 [internal quotation marks and citations omitted].)

With

respect to Dilmon, there is no evidence that Dilmon conducted business in the state of California; advertises or markets its investment advisory services to California residents; and/or contracted with a company doing business in California. (Dilmon Mot., Clot Decl., ¶7.) Nor was Dilmon involved in the day-to-day operations and management of MBH. (Id., ¶6.) Although Marc Socker and Nicolas Bouquay are employees of Dilmon, their roles have been limited to investment advice and/or real estate work for properties in Dilmon’s portfolio, respectively. (Id., ¶9.) Contrarily, Michele Faissola is employed by Dilmon’s parent company not Dilmon. (Id.) As such, Plaintiff

assertions that Socker, Bouquay, and Faissola's communications concerning the management, operations, and development of the MBH project cannot be attributed to Dilmon. (McKillen Decls., ¶¶17-22.)

As

to HBK and Lulwah, there is no evidence that either of them traveled to California for purposes related to the MBH project. As discussed earlier, Plaintiff admits the contract and meeting occurred electronically and/or in Qatar. Nonetheless, neither HBK nor Lulwah dispute that the contract was supposed to be performed in California, i.e., directly aimed at engaging in commercial activities within the state of California. Likewise, the communications related to the MBH project concerned approval for budget, the work to be performed, and renaming the businesses. (See generally McKillen Decls.; Howard Decls.; Cunningham Decls.) In *Anglo Irish Bank Corp., PLC v. Superior Court* (2008) 165 Cal.App.4th 969 held that "[t]he proper jurisdictional question is not whether the defendant can be liable for the acts of another person or entity under state substantive law, but whether the defendant has purposefully directed its activities at the forum state by causing a separate person or entity to engage in forum contacts." (*Anglo Irish Bank Corp., PLC v. Superior Court* (2008) 165 Cal.App.4th 969, 983.)

Essentially, HBK and Lulwah purposefully and voluntarily directed their activities toward California for business purposes through Socker, Bouquay, and Faissola. (See generally McKillen Decls.; Howard Decls.; Cunningham Decls.)

Thus, Plaintiff has established that exercising jurisdiction over HBK and Lulwah would comport with the traditional notions of fair play and substantial justice.

The Court

briefly notes that HBK contests the validity of the service of process via mail. However, the Court already found that service of process was proper via mail when it ruled HBK's prior motion to quash. (See Min. Order, 4/28/23 at p. 20.)

Conclusion

Based on

the foregoing, Defendant Dilmon Services (U.K.) Limited's Motion to

Quash Service of Summons is GRANTED.

Defendant Sheikh Hamad bin Khalifa

bin Hamad bin Abdullah bin Jassim bin Mohammed Al-Thani's Motion to Quash
Service of Summons is DENIED.

Defendant Sheikha Lulwah bint Hamad

bin Khalifa Al-Thani's Motion to Quash Service of Summons is DENIED.

Defendants

Sheikh Hamad bin Khalifa bin Hamad bin Abdullah bin Jassim bin Mohammed
Al-Thani and Sheikha Lulwah bint Hamad bin
Khalifa Al-Thani are ordered to file an Answer to the
Complaint within 20 days of this order.

Dated: July 9, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court